

Civil Procedure

Elon University School of Law
Fall 2026
Room 204
Mondays, Wednesdays, & Fridays, 10:00–11:30 am

Professor
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Office Hours: calendly.com/emfink/

Description

In this course, you will learn about the procedures for civil suits. Topics to be covered include the scope of a lawsuit, selection of an appropriate forum, presentation of claims and defenses, choice of applicable law, disposition without a trial, and the effect of judgments on future litigation. Other aspects of civil litigation (e.g., discovery, trials, & appeals) are covered in upper-level elective courses. While the course will focus on federal courts, the rules of civil procedure in many states (including North Carolina) are similar.

This course is intended to prepare you for legal practice by developing the knowledge and skill required to recognize and analyze procedural issues in civil litigation, advise clients on those issues and the available options, and draft pleadings and motions.

Course Materials

Required

Civil Procedure: An Open-Source Casebook (v.1.0 2026). Available on the course website: emfink.net/Quarto_Casebook.

Suggested

Kevin M. Clermont, *Principles of Civil Procedure* (West Academic 7th ed. 2024). This hornbook provides concise overviews of the topics covered in the course.

Policies

Grading

Your final grade for the term will be based on a midterm (25%) and final exam (75%):

- The midterm will be open-book/open-note and will consist of multiple choice questions.
- The final exam (closed-book/closed-note) will consist of essay and short-answer questions. You will take the final exam at the Law School during the Fall Term exam period (date & time TBA).

Attendance

Elon Law School has adopted the following attendance policy for all courses:

The Law School administers a policy that a student maintain regular and punctual class attendance in all courses in which the student is registered, including externships, clinical courses, or simulation courses. Faculty members will give students written notice of their attendance policies before or during the first week of class. These policies may include, but are not limited to: treating late arrivals, early departures, and/or lack of preparation as absences imposing grade or point reductions for absences, including assigning a failing grade or involuntarily withdrawing a student from the class and any other policies that a professor deems appropriate to create a rigorous and professional classroom environment. In case of illness or emergency, students may contact the Office of Student and Professional Life, which will then notify the student's instructors. A student may notify the faculty member directly of a planned absence and should refer to individual faculty members regarding any policy that may apply. In the case of prolonged illness or incapacity, the student should contact the [Office of Student Life](#).

You should let me know (in advance if feasible) if you are unable to attend class, will arrive late, or must leave early. I do not require an explanation of the reason, nor do I require a doctor's note or other documentation.

Disability Accommodations

For disability accommodation requests, contact the [Office of Academic Accommodations and Accessibility](#).

Honor Code

The Law School [honor code](#) applies to all activities related to your law school study, including conduct during class and examinations.

Schedule & Assignments

1. Foundations of Civil Procedure

Clermont chap. 1 & 2

Monday, August 31

- Foundations of Civil Procedure, Casebook Chap. 1

2. Parties and Claims

Clermont chap. 6

Wednesday, September 2

- Permissive Joinder of Claims & Parties, Casebook Chap. 2, §§ 2.1 & 2.2

Friday, September 4

- Counterclaims, Casebook Chap. 2, § 2.3

Wednesday, September 9

- Crossclaims, Casebook § Chap. 2, 2.4

Friday, September 11

- Third-Party Defendants & Claims, Casebook Chap. 2, § 2.5

Monday, September 14

- Required Parties, Casebook Chap. 2, § 2.6

Wednesday, September 16

- Joinder Wrap-Up

3. Personal Jurisdiction

Clermont chap. 4: §§ 4.2-4.4

Friday, September 18 & Wednesday, September 23

- Constitutional Limits: Due Process, Casebook Chap. 3, § 3.1

Friday, September 25 & Monday, September 28

- Specific Jurisdiction, Casebook Chap. 3, § 3.2

Wednesday, September 30

- General Jurisdiction, Casebook Chap. 3, § 3.3

Friday, October 2

- Consent; Long-Arm Statutes, Casebook Chap. 3, §§ 3.4 & 3.5

4. Subject Matter Jurisdiction

Clermont chap. 4: § 4.1

Monday, October 5 & Wednesday, October 7

- Constitutional Foundation; Federal Question Jurisdiction, Casebook Chap. 4, §§ 4.1 & 4.2

Friday, October 9 & Monday, October 12

- Diversity Jurisdiction, Casebook Chap. 4, § 4.3

Wednesday, October 14 & Monday, October 19

- Supplemental Jurisdiction, Casebook Chap. 4, § 4.4

5. Choice of Governing Law

Clermont chap. 3

Wednesday, October 21 & Friday, October 23

- The Rules of Decision Act, Casebook Chap. 5, § 5.1

Monday, October 26 & Wednesday, October 28

- The Rules Enabling Act; Synthesis, Casebook Chap. 5, §§ 5.2 & 5.3

6. Pleading

Clermont chap. 2: § 2.2(A)

Friday, October 30

- Pleading Under the Federal Rules, Casebook Chap. 6, §§ 6.1

Monday, November 2 & Wednesday, November 4

- Assessing the Sufficiency of a Claim, Casebook Chap. 6, §§ 6.2

Friday, November 6

- Answers & Defenses Casebook Chap. 6, § 6.3

Monday, November 9

- Truthfulness and Good Faith, Casebook Chap. 6, § 6.4

7. Effect of Judgments

Clermont chap. 5

Wednesday, November 11 & Friday, November 13

- Full Faith & Credit; Claim Preclusion, Casebook Chap. 7, §§ 7.1 & 7.2

Monday, November 16 & Wednesday, November 18

- Issue Preclusion, Casebook Chap. 7, § 7.3

8. Summary Judgment

Clermont chap. 2: § 2.2 (E)(2)

Friday, November 20

- Judgment as a Matter of Law; Genuine Issue of Material Fact, Casebook Chap. 8

Date TBA Final Review

Date TBA Final Exam